

GUARDIANSHIP OF AVERY & ZADEN MADRIGAL

Case Number: CVPG20-0030814

This matter is on calendar for Annual Review. The annual Confidential Guardianship Status Reports for Avery and Zaden have not been submitted. **The Guardian is ORDERED to appear at today's hearing and submit the Annual Status Report at the time of the hearing. Failure to do so may result in the issuance of an Order to Show Cause why Monetary Sanctions in the amount of \$250.00 should not be ordered for violating the Court's order to appear and to file the report.**

GUARDIANSHIP OF CYILIEGH, JOEY & KENZLIEGH MCCLOUD

Case Number: 24PG-0032725

This matter is on calendar for hearing on further proceedings on a Petition for Appointment of Guardian of Minors, Kenzleigh, Cyiliegh, and Joey McCloud. The Petition was filed by the minor's maternal aunt Lovetta Hemphill and her spouse Austin Hemphill. Letters of Temporary Guardianship issued on December 2, 2024. The Temporary Guardianship's powers are set to expire today unless further extended. The matter is also on calendar for a hearing on a Petition for Appointment of Guardian of Minors filed by paternal aunt Maria McCloud. Letters of Temporary Guardianship were denied pending hearing.

McCloud Petition. At the hearing on February 10, 2025, Ms. McCloud was informed of several defects in her paperwork and was directed to file an Amended Confidential Screening Form, form ICWA-030, and to file and serve the Notice of Hearing and Petition on all required parties. Ms. McCloud has failed to comply with curing any defects in her paperwork as previously noted. There is no proof of service of the Notice of Hearing on the father, temporary guardians, paternal grandparents, or siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). There has been no objection filed. If Ms. McCloud intends to move forward with her Petition, she is required to file an ICWA-030 and Amended Confidential Guardianship Screening form.

Hemphill Petition. Petitioners have failed to complete, file, and serve a new Notice of Hearing for today's date. The Court notes the Proof of Unsuccessful Service filed February 24, 2025 showing law enforcement's efforts to serve the father, Joseph McCloud. There is no proof of service of the Notice of Hearing for the father, paternal grandparents, or siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. The parents must be personally served in order to move forward on the Petition. Prob. Code § 1511(b). All other parties may be served by mail. Prob. Code § 1511(c). Maria McCloud has filed an objection.

ICWA. Ms. McCloud previously identified that the minors may be members of "Big Valley Band of Pomo Indians- Lake County" and "Quartz Valley Reservation-Siskiyou County," however she failed to file form ICWA-030, so the tribe has not been notified. The Hemphill's filed ICWA-030